

24SMCV04097 24SMCV04097

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C06%2F30%2F2026

Source SHA-256: 58f9290dd0cb2810ffc6800ccfd09c3c1d630ccb32a4181b588661db6a38344e

Case Number: 24SMCV04097 Hearing Date: June 30, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

30, 2026

CASE NUMBER

24SMCV04097

MOTION

Motion

to be Relieved as Counsel

MOVING PARTY

Thomas

H. Scully

OPPOSING PARTY

(none)

MOTION

Thomas H. Scully of Law Offices of
Thomas Scully ("Counsel"), counsel for Defendant and
Cross-Complainant Luubao N Nguyen and Defendant REML, LLC, moves to be relieved
as counsel, citing a breakdown of the attorney-client relationship. The motion is unopposed.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an
action or special proceeding may be changed at any time before or after
judgment or final determination as follows: 1. Upon the consent of both client
and attorney, filed with the clerk, or entered in the minutes; 2. Upon the
order of the court, upon the application of either client or attorney, after
notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on
form MC-051; (subd. (a));

(2) it must be accompanied by
a declaration on form MC-052 stating why the motion is brought under Code of
Civil Procedure section 284(2) instead of a consent brought under section
284(1); (subd. (c));

(3) a proposed order on form
MC-053 must be lodged with the court, specifying all hearing dates scheduled in
the action or proceeding, including the date of trial, if known; (subd. (e));
and

(4) The documents must be
served on the client and on all parties that have appeared in the case. (subd.
(d).)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052, and MC-053. The attorney declaration (MC-052) indicates that the motion was filed instead of filing a consent because:

Irreconcilable differences have arisen between Defendants and Cross-Complainants Luubao Nguyen and his single-member entity, REML, LLC., after the mediation effort ended without a resolution. Communications have broken down between counsel, Mr. Scully, and the client, Luubao Nguyen, who represents both himself, as a natural person, and of his entity, REML, LLC. regarding trial preparations, performance under the written fee agreement, and other matters, necessitating the substitution of trial counsel. However, Luubao Nguyen has not yet arranged for new counsel or substituted Mr. Scully out, and in the event that cannot be accomplished in a timely manner, Mr. Scully requests that he be simply relieved as counsel of record prior to trial.

(MC-052 at ¶ 2.) As such, the Court finds that the motion complies with the Rules of Professional Conduct, rule 1.16(b)(4).)

However, Counsel has not filed any proof of service demonstrating proper service of the forms on the client and on the parties who have appeared in the matter. Therefore, the Court finds the motion to be procedurally improper.

CONCLUSION AND ORDER

In lieu of denying the motion, the Court continues the hearing on the motion to July 29, 2026 at 8:30 A.M. in Department 207 to afford Counsel an opportunity to serve the moving papers as required by the Rules of Court, as necessary, and file the requisite proof of service.

Counsel shall also provide notice of the continued hearing and this Ruling, and file the notice with a proof of service forthwith.

DATED: June 30, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court